

Court No. - 21

Case :- WRIT - C No. - 46885 of 2014

Petitioner :- Sneha Devi

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- M.L. Rai

Counsel for Respondent :- C.S.C., Chandan Agrawal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Chandan Agarwal, learned counsel for the Power Corporation.

Learned counsel for the petitioner is permitted to implead the concerned Executive Engineer as respondent no. 4 during the course of the day and for the purpose necessary corrections can be carried out in the array of parties.

The petitioner had come up earlier before this Court for the same purpose by way of filing of Writ Petition No. 28353 of 2014, which was dismissed as premature on 21.5.2014. The aforesaid order dated 21.5.2014 is extracted below:

We have heard Sri M.L.Rai, learned counsel for the petitioner and Sri V.K.Srivastava, learned counsel for respondent no. 2.

The petitioner has approached this Court seeking a writ of mandamus to command the respondents to provide electricity connection in the rented accommodation in her possession. A perusal of the pleadings goes to show that the petitioner has applied for electricity connection only on 10-05-2014. Photocopy of the application annexed along with writ petition goes to show that the application form is incomplete and many column has not been filled in.

Clause 4.1 of the U.P. Electricity Supply Code, 2005 provides that the licensee shall on an application by the owner or occupier of any premises, located in his area of supply, give supply of electricity to such premises within one month after receipt of completed application.

The application was made by the petitioner only on 10-05-2014 and without awaiting the period prescribed in the Code, she has approached this Court.

Writ petition is premature and stands dismissed.

Now the present petition has been filed for the same and the learned counsel for the petitioner asserts that till date the application for electricity connection in the tenanted premises, which was filed by her, has not yet been disposed of.

The power under Clause 4.4. of the Electricity Code 2005 has to be exercised by the Executive Engineer after putting the land lord to notice.

We are of the opinion that under Clause 4.4. of the Electricity Supply Code, 2005, the grievance of the petitioner can be suitably decided by the concerned Executive Engineer preferably within a period of two months from the date of production of a certified copy of this order. Order accordingly.

The writ petition is disposed of with the said observations.

Order Date :- 3.9.2014
Puspendra